

CasePass Workflow Review for England and Comparable Common Law Jurisdictions

Executive assessment

The uploaded CasePass flow is directionally strong. It already captures the commercial and operational objective well: one lawyer uploads the file, the system produces a short English brief, identifies the next step, preserves additional notes, transfers the matter, and then captures a structured update after the receiving lawyer completes the task. Your annotations also sharpen the concept in the right places by requiring urgent-action triage, source-only outputs with document-and-page attribution, an authority/representation feature, and AI-assisted note capture after the receiving lawyer's intervention.

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The main weakness is not the idea itself, but the sequencing. In its present form, the flow is still too **document-first** and not sufficiently **permission-first**. For England-facing deployment, that creates three immediate operational risks. First, a full file may be exposed before conflicts, confidentiality, competence, and client-authority checks are complete. Second, the current "signature/substitution" concept is not framed in the way English civil procedure handles a change of legal representative. Third, the hearing-transcription idea becomes legally unsafe if it is implemented as live audio capture in court or in a remote hearing, because unauthorised sound recording is illegal and may amount to contempt. ¹

That means the current flow is best understood as a **product sketch**, not yet as an operationally complete workflow for England and Wales. Under the SRA framework, solicitors still owe duties of competence, timeliness, confidentiality, supervision, independence, and acting in the client's best interests when using technology. The SRA's current AI guidance also expects leadership oversight, risk and impact assessments, policies, training, ongoing monitoring, and due diligence on the platform itself. ²

Critical interaction gaps and functions that will fail or slow the process

The flow starts too late in the lifecycle. "Case Upload" appears as the first operational step, but in England a receiving solicitor or firm should not be given full access to the matter file before at least a preliminary conflicts/confidentiality screen, a competence/capacity check, and a decision about whether the intended work is one the recipient is entitled and practically able to perform. SRA conflicts guidance is explicit that it is better to avoid a conflict before taking on a client or retainer, and the SRA's confidentiality guidance underscores the duty to keep client affairs confidential. If the platform opens with unrestricted file transfer, it risks breaching those duties before the recipient has even accepted the instruction. ³

The "substitution of power" idea is not native to English litigation workflow. In England and Wales civil proceedings, the operative issue is generally not a generic "substitution of power," but whether there is a **change of solicitor**, whether the new lawyer is acting only as an advocate for a hearing, and whether a

notice of change must be filed and served. CPR Part 42 provides that where a party changes solicitor, appoints a solicitor after acting in person, or moves from solicitor representation to acting in person, notice must be filed and served; until that happens, the former solicitor is treated as still acting. Practice Direction 42 also specifies form and filing routes, including MyHMCTS in relevant cases. So, if the authority feature stays embedded inside “Attorney Notes,” it will not map cleanly to English procedural reality and will cause delay, confusion, or duplication of effort. 4

The hearing transcription concept is presently the most legally problematic function. Your annotation suggests giving the receiving lawyer a voice-AI note-taking option “in the case of hearings,” followed by processing and summarisation into the case update. In England and Wales, that cannot be implemented as default live audio capture in the courtroom or during a remote hearing. Government guidance states that taking sound recordings in the courtroom, hearing room, court building, or in remote attendance is illegal and may be contempt of court. A lawful design therefore needs a different model: typed attendance notes, post-hearing dictated notes outside the courtroom, or ingestion of an official transcript or authorised court recording where one exists and may lawfully be obtained. That distinction is critical, because some hearings are recorded and transcripts can be requested, but not all: civil and family courts are recorded, tribunals are not always recorded, and magistrates’ courts are never recorded. 5

The flow does not yet separate roles that English law treats differently. The interface uses “sending attorney” and “receiving attorney,” but England-facing workflow needs finer role logic. A recipient might be a new solicitor on the record, a local agent, counsel for a hearing, an internal fee earner, or an advocate with or without higher rights. The distinction matters because not all legal work is the same under the Legal Services Act 2007, and not every lawyer can appear in every forum in the same way. Reserved legal activities include the conduct of litigation and rights of audience, and only barristers and solicitors with the appropriate rights can represent clients in the higher courts. If the workflow does not ask **who is receiving the matter and for what exact task**, assignment logic will be unreliable and tasks will be routed to the wrong person. 6

The current “human review” checkpoint is necessary, but not sufficient. One review before transfer is good, but England-facing deployment needs at least two mandatory validation points: one before handoff and another before the post-action update becomes the new operative case status. That is because the duties of competent, timely service and effective supervision do not disappear after the receiving lawyer finishes the task. If the AI-generated closing update becomes the new truth-state for the matter, it should also be validated before it triggers the next workflow step, deadline calculation, or onward transfer. 7

The source-citation promise is strong, but still technically underspecified. Your note that the executive case brief must never invent facts and must always cite the document name and page is exactly the right legal-tech direction. But that promise only works if the system has page-level source mapping, document naming normalisation, citation persistence after re-upload/versioning, and a visible uncertainty flag when OCR or extraction is weak. Without that architecture, the feature may look functional in a demo yet fail in real litigation files, which would directly undermine the very reliability standard you want the tool to embody. 8

The end-state logic is too thin. “Return or retain case” is a useful product idea, but in operational terms it is incomplete unless the system records who is now responsible for the matter, who is on the court record, whether service details changed, whether the new lawyer’s task was limited or open-ended, and whether any client-care or onboarding obligations have been triggered. In a new business relationship, customer

due diligence may be required; if it cannot be completed where required, the relationship cannot be established. A simple toggle between “return” and “retain” will not be robust enough. ⁹

England-specific legal architecture the workflow must respect

For an England-facing version of CasePass, the relevant legal operating environment is the court and solicitor-regulation framework of **England and Wales**, even if the commercial positioning is simply “England.” That framework makes certain design choices non-optional. At the professional-regulatory level, solicitors must act in the client’s best interests, uphold public trust, provide competent and timely service, accept instructions only from the client or someone properly authorised, and remain accountable for supervised work. Client affairs must remain confidential unless disclosure is required or permitted by law or the client consents. ¹⁰

At the procedural level, a change in representation is not just a note inside the matter history. CPR Part 42 requires filing and service of a notice of change in the situations it covers, and the former solicitor remains on the record until that notice is properly filed and served. Practice Direction 42 adds procedural detail, including use of form N434 or MyHMCTS where applicable. The Rules also contain an important exception: if the solicitor is appointed **only to act as an advocate for a hearing**, the particular notice-of-change logic differs. That one rule alone means CasePass needs a dedicated **representation-status branch**, not a generic “handover completed” status. ⁴

At the task-routing level, the platform must distinguish between ordinary legal work, the conduct of litigation, and rights of audience. The Legal Services Board summarises the reserved legal activities created by the Legal Services Act 2007, including the conduct of litigation and the exercise of a right of audience. The SRA’s public guidance on advocacy further notes that higher-court representation is restricted to barristers and solicitors with higher rights of audience. A workflow that lets any receiving user accept “attend hearing” or “conduct proceedings” without a rights-and-role check will therefore mis-route work and generate avoidable process failure. ⁶

At the compliance and data-governance level, the current concept needs firmer gates before transfer and before AI processing. The SRA’s 2026 AI guidance calls for leadership oversight, risk and impact assessments, policies, training, monitoring, due diligence, and continued compliance on confidentiality and conflicts. The ICO’s AI guidance and data-minimisation guidance add that AI systems require accountability/governance planning, DPIA thinking where appropriate, transparency, and limitation of personal data to what is necessary. In practice, that means CasePass should not be designed as “upload everything first and sort it out later.” It should be designed to collect and expose only the minimum file materials needed for the defined handoff purpose at each stage. ¹¹

At the onboarding level, the platform also needs a rule for when the receiving lawyer or firm is opening a new business relationship rather than merely helping within the same firm. Law Society guidance explains that CDD is required in specified circumstances, including when establishing a business relationship, and that if CDD cannot be completed where required, the relationship cannot be established. This does not mean every intra-team handoff requires AML steps, but it does mean the workflow must ask the right question early: **is this an internal reassignment, agent instruction, counsel brief, or transfer to a new instructed firm?** ¹²

Finally, on signatures and authority, the law in England and Wales is generally receptive to electronic signatures, and the Law Commission's position—published by government—confirms that electronic signatures can in most cases be used as a viable alternative to handwritten signatures. That is helpful, but it does **not** rescue the current “signature for substitution” idea in its present generic form. The signature component should be re-scoped into a jurisdiction-specific **authority pack**: client consent or instruction evidence, limited retainer terms, engagement or agency confirmation, and—where the forum requires it—the formal notice that updates the court record. ¹³

Redesigned end-to-end workflow

The most effective redesign is to convert CasePass from a simple upload-and-transfer tool into a **gated legal handoff workflow**. The improved sequence below preserves your original product logic but makes it operationally safer and faster for England, while remaining portable to other common-law systems.

Referral shell and urgency triage. The first screen should not be “upload the whole file.” It should be a limited-intake shell populated only with minimal metadata: matter name, court or tribunal, case type, client name, opposing party, next hearing or filing date, urgency level, intended task, and whether the recipient is expected to become solicitor on the record or is being instructed only for a discrete task. This preserves confidentiality while allowing the recipient or receiving firm to decide whether they can lawfully and practically accept the work. It also operationalises your own observation that the system should quickly tell the recipient what must be done if there is an urgent act to perform. ¹⁴

Recipient clearance gate. Before the file is opened, the recipient should confirm conflicts clearance, confidentiality screening, competence for the matter type, capacity to take the deadline, and—where relevant—rights of audience or authority to conduct litigation. If the work creates a new business relationship, the workflow should open the appropriate CDD branch instead of continuing silently. This single gate will eliminate a large share of avoidable delay, because it stops the system from building handover packs for recipients who cannot actually take the matter. ¹⁵

Authority and representation-status gate. Once the recipient is cleared, the sending solicitor should classify the handoff into one of several states: internal reassignment, external agent instruction, counsel/advocacy-only brief, or full change of instructed solicitor. If the matter is a civil claim and the solicitor on the record is changing, the workflow should trigger the Part 42 branch for notice of change, service, and service-address confirmation. If the recipient is instructed only as an advocate for a hearing, that should be recorded as a limited assignment rather than a representation transfer. This is the point where any signature or client authority evidence belongs—not inside free-text notes. ¹⁶

Secure matter-file ingestion and source indexing. Only after the recipient is cleared and the representation state is defined should the full matter file be uploaded or released. The document architecture should create a source register that preserves: document title, upload date, uploader, page numbering, privilege/confidentiality tags, and whether the document is operative, superseded, or informational. This is the technical foundation required to deliver the page-cited executive brief you asked for. The platform should also flag missing documents—especially orders, draft pleadings, filed versions, and hearing notices—because an apparently polished AI summary built on an incomplete file is operationally more dangerous than an obvious “missing documents” alert. ¹⁷

AI extraction and source-cited handover note. After ingestion, CasePass should extract the stage of proceedings, live applications, latest order, operative deadlines, next required step, important factual and documentary anchors, and any identified risk flags. For England-facing drafting, the output language should move away from US-leaning phrasing such as “procedural posture” and toward expressions such as **stage of proceedings, current procedural status, live directions, next filing, hearing attendance, or attendance note**. Most importantly, every material proposition in the handover note should carry a source citation by document name and page; where the evidence is uncertain or absent, the system should say so explicitly. That matches both your product requirement and the wider regulatory expectation of accountable and transparent AI use. turn0file0 18

Sending-solicitor approval. The sending solicitor should then review the AI draft, correct misclassifications, confirm the immediate task, and add strategic notes that are clearly separated from file-derived facts. This is also where the sender should add practical instructions that English litigation handoffs often need: who the client contact is, whether settlement authority exists, whether counsel is already instructed, whether costs approval is required, and whether the task is limited or continuing. That review should produce a locked **Handover Pack** rather than merely “approving the AI.” 7

Recipient acceptance and task confirmation. The recipient should actively accept the instruction before the system treats the handoff as complete. Acceptance should require confirmation of scope, deadline, and role: for example, “draft application only,” “attend CCMC,” “appear at County Court hearing,” or “review disclosure issue.” If the recipient rejects or requests clarification, the platform should reopen the instruction without changing the operative owner of the matter. This prevents a common workflow failure in legal operations: the sending lawyer believes the matter has been handed over, while the recipient thinks they were only asked to review it. The need for clarity around instructions and authorisation is consistent with the SRA Code’s requirement that solicitors act only on instructions from the client or someone properly authorised. 19

Task execution with court-safe note capture. During performance of the assigned task, the platform can assist with drafting, document review, chronology building, and post-event updates. For hearings, however, the note-taking design must reflect court-recording rules. The safe English model is: typed attendance notes during the hearing if permitted as ordinary note-taking, post-hearing dictated notes outside the courtroom, and optional import of a lawfully obtained official transcript or authorised recording. Live in-hearing voice capture should be disabled by default, and any exceptional activation should require a court-permission workflow and admin approval. 5

Post-action update and verification. After the task, the recipient should upload or link the resulting document or event record—filed application, sealed order, attendance note, email from court, official transcript, or counsel outcome note. AI can then generate the structured update, but the recipient should verify it before it becomes the new matter status. This second validation point is essential if later users will rely on the update for the next deadline or next transfer. 7

Routing, return, retention, and continuity. The final stage should not ask only whether to “return” or “retain” the case. It should ask which of four outcomes applies: return to originating solicitor; remain with current solicitor as a limited follow-on task; remain with current solicitor as the new instructed solicitor; or escalate because ownership is disputed or the file is incomplete. If the matter stays with a new instructed solicitor in a civil claim, the workflow should not close until the Part 42 branch is complete and the service

details on the matter are updated. That is how the platform turns a handoff tool into a reliable continuity tool. ⁴

Common-law language and scaling rules

To make the flow read naturally for England while remaining portable to similar common-law jurisdictions, the best drafting method is to separate **core legal-operational concepts** from **jurisdiction-specific procedural artefacts**. The language below does that cleanly.

Current wording	England-facing wording	Portable common-law abstraction
sending attorney	sending solicitor / instructing solicitor	originating legal representative
receiving attorney	receiving solicitor / instructed solicitor / advocate / counsel	receiving legal representative
case file / expediente	matter file / papers / bundle	matter dossier
latest action	latest order / latest filing / latest attendance / latest procedural event	latest procedural event
procedural posture	stage of proceedings / current procedural status	procedural status
attorney notes	solicitor notes / strategic notes / client-instruction notes	practitioner notes
substitution of power	notice of change / change of solicitor / authority to act	representation-change workflow
hearing voice transcription	post-hearing dictation / attendance note / official transcript import	hearing record capture
return or retain case	return to instructing solicitor / remain with current instructed solicitor	matter-routing outcome

The portability point is important. If CasePass is to scale across common-law jurisdictions, the platform should keep these elements in a configurable jurisdiction layer rather than hard-code them into the core flow: representation-change document, hearing-recording rule, rights-of-audience rule, filing connector, and naming conventions for the operative court document. In England civil proceedings, the representation-change artifact is a notice of change under CPR Part 42; in a different jurisdiction, the same abstract workflow could point to a different formal instrument. The same modular approach should apply to hearing capture, because England’s prohibition on unauthorised sound recordings makes that feature especially jurisdiction-sensitive. ²⁰

Rewritten prompt for a clear England-focused flowchart

The following prompt rewrites your original concept into an operational flow that is compatible with England and Wales practice, uses more natural common-law legal language, removes the problematic live-

hearing-recording concept, and keeps the model scalable to similar jurisdictions by using a modular representation-change and hearing-record layer. It also preserves your core idea of a source-cited executive brief, urgent-action triage, lawyer notes, and a structured update after the receiving lawyer's work.

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Create a professional, visually clear legal-tech workflow diagram for a platform called "CasePass".

The diagram must show an end-to-end matter handoff workflow designed for England and Wales, using legal terminology natural to English litigation and common-law practice. The workflow must also be modular so it can scale to similar common-law jurisdictions by replacing only jurisdiction-specific procedural steps.

Use a clean B2B legal-tech design style: navy, white, greys, and one restrained technology accent colour. The visual tone should be professional, precise, trustworthy, and suitable for law firms, litigation teams, and legal operations. Use icons for matter file, conflict check, authority to act, AI review, source citation, deadline alert, solicitor review, hearing attendance, transcript, update, audit trail, and case continuity.

Main title:

"CasePass Workflow: Source-Cited Legal Handover for England and Wales"

Subtitle:

"An AI-assisted workflow for transferring matter context, live deadlines, and post-action updates between solicitors, advocates, and legal teams."

The diagram should be horizontal from left to right and grouped into four blocks:

Block A: "Screen and Authorise"

Block B: "Build the Handover Pack"

Block C: "Perform the Assigned Task"

Block D: "Update, Route, and Continue"

Use the following workflow stages in order:

1. Referral Shell

Short text:

"The sending solicitor begins a handoff by entering limited matter metadata only: court or tribunal, matter type, client, opponent, next date, urgency, intended task, and intended receiving role."

2. Recipient Clearance

Short text:

"The receiving lawyer or firm completes conflict screening, confidentiality clearance, competence and capacity checks, and confirms whether the task is

within their role and forum rights.”

3. Client Authority and Representation Status

Short text:

“CasePass confirms whether the handoff is an internal reassignment, external agent instruction, advocacy-only brief, or full change of instructed solicitor.”

Add a small England-specific note:

“In civil proceedings, a change of solicitor triggers a Notice of Change workflow under CPR Part 42 or MyHMCTS where applicable.”

4. Compliance Branch

Short text:

“If the receiving lawyer is opening a new business relationship, the workflow opens onboarding and due diligence steps before full access is granted.”

5. Secure Matter File Upload

Short text:

“The sending solicitor uploads the relevant papers only after clearance: pleadings, orders, correspondence, evidence, hearing notices, draft documents, and key prior notes.”

6. Source Indexing and Document Map

Short text:

“CasePass creates a document register with file name, page references, source status, privilege/confidentiality flags, and version history.”

7. AI Matter Review

Short text:

“The platform identifies the stage of proceedings, most recent operative event, live deadlines, urgent issues, missing papers, and the next required procedural step.”

8. Executive Handover Note

Short text:

“CasePass generates a short English handover note using source-cited statements only, with document name and page reference for every material point.”

9. Sending Solicitor Review

Short text:

“The sending solicitor reviews, edits, validates, and approves the handover pack, separating file-based facts from strategic notes and client-specific instructions.”

10. Handover Pack Release

Short text:

“The approved pack is released to the receiving lawyer with the executive note, next step, risk flags, task scope, strategic notes, and linked source

documents.”

11. Recipient Acceptance

Short text:

“The receiving lawyer actively accepts the instruction, confirms scope and deadline, and acknowledges whether the task is limited or continuing.”

12. Task Execution

Short text:

“The receiving lawyer performs the assigned work: drafting, filing, attending a hearing, reviewing evidence, advising on an application, or completing a procedural step.”

13. Hearing Note Capture

Short text:

“For hearings, CasePass supports typed attendance notes, post-hearing voice dictation outside court, and import of an authorised transcript or official hearing record where available.”

Add a compliance warning:

“No live in-court audio recording by default.”

14. Post-Action Update

Short text:

“After the task, the receiving lawyer uploads the resulting document, order, attendance note, or transcript and records what was done, what happened, and what now follows.”

15. AI Update Draft

Short text:

“CasePass converts the post-action material into a structured update note, preserving citation, chronology, and traceability between the original file, the task performed, and the new procedural status.”

16. Recipient Verification

Short text:

“The receiving lawyer verifies the update before it becomes the new matter status.”

17. Routing Outcome

Short text:

“The matter is then routed to one of four outcomes: return to instructing solicitor, remain with current solicitor for a limited follow-on task, remain with current solicitor as new instructed solicitor, or escalate due to unresolved risk or incomplete file.”

18. Continuity Layer

Short text:

"Every future handoff reuses the same source map, audit trail, deadline history, and verified updates to reduce context loss and improve continuity."

Add a right-side panel titled:
"England Compliance Checkpoints"

Include these exact items:

- Conflict and confidentiality clearance before full file access
- Client authority and role definition
- Notice of Change branch for civil proceedings where required
- Rights of audience and task eligibility check
- AI outputs remain solicitor-reviewed
- Source-cited statements only
- Data minimisation and controlled access
- No live hearing audio recording by default
- Official transcript import only where lawfully available

Add a second right-side panel titled:
"Core Outputs"

Include these exact outputs:

- Referral summary
- Executive handover note
- Latest operative event
- Urgent action flag
- Next procedural step
- Strategic solicitor notes
- Risk flags
- Verified post-action update
- Updated matter status
- Audit trail and source register

Use England-facing legal language throughout:

- solicitor
- instructed solicitor
- advocate
- counsel
- matter
- proceedings
- hearing
- filing
- order
- directions
- notice of change
- attendance note
- procedural status
- next step

Avoid these terms unless used only as generic fallback labels:

- attorney
- substitution of power
- procedural posture

Add a small footer note:

“Jurisdiction-specific steps should be modular so the same workflow can be adapted to other common-law systems.”

Make the final diagram visually clean, professional, and easy for lawyers and legal operations teams to understand at a glance.

The corrected flow is therefore not a rejection of your original concept. It is a refinement of it. The original logic becomes much stronger once the workflow is reordered around three non-negotiable controls: **clearance before disclosure, authority before transfer, and lawful record-capture after hearings.** Those changes protect the England version from procedural friction while also making the product easier to scale into other common-law environments. ²²

¹ ³ ¹⁴ ¹⁵ ²² <https://www.sra.org.uk/solicitors/guidance/conflicts-interest/>
<https://www.sra.org.uk/solicitors/guidance/conflicts-interest/>

² ⁷ ¹⁹ <https://www.sra.org.uk/solicitors/standards-regulations/code-conduct-solicitors/>
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<https://www.justice.gov.uk/courts/procedure-rules/civil/rules/part42>

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⁶ <https://legalservicesboard.org.uk/enquiries/frequently-asked-questions/reserved-legal-activities>
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⁸ ¹¹ ¹⁷ ¹⁸ <https://www.sra.org.uk/solicitors/resources/innovate/compliance-tips-for-solicitors/>
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⁹ ¹² <https://www.lawsociety.org.uk/topics/anti-money-laundering/customer-due-diligence>
<https://www.lawsociety.org.uk/topics/anti-money-laundering/customer-due-diligence>

¹⁰ <https://www.sra.org.uk/solicitors/standards-regulations/principles/>
<https://www.sra.org.uk/solicitors/standards-regulations/principles/>

¹³ <https://www.gov.uk/government/publications/electronic-execution-of-documents>
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